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A research demonstrator for the Post-Report Provenance Procedure — a three-stage civil-procedure framework for AI-copyright disclosure under PD 57AD, England & Wales.

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§ I · THE PROBLEM

The UK Government's *March 2026 Report on Copyright and Artificial Intelligence* identified an evidentiary asymmetry at the heart of AI-copyright litigation: claimants cannot inspect training corpora, while EU AI Act Art.53 disclosures are aggregated to a level that does not establish causal nexus for individual works.

Getty v Stability AI [2025] EWHC 2863 (Ch) confirmed the limits of the secondary-infringement route in the UK. The substantive law has not moved; the procedural toolkit has not been adapted to the asymmetry. PRPP responds to this gap.

§ II · THE FRAMEWORK

Stage 1 — Prima Facie Trigger. Three evidentiary routes calibrated to the good-arguable-case threshold under CPR r.6.37: (a) hosted-repository evidence cross-referenced with Common Crawl / LAION-5B and the developer's model card; (b) circumstantial regurgitation per Ahmed et al. (2026) arXiv:2601.02671 (preprint); (c) Membership Inference Attack as CPR Pt 35 expert evidence.

Stage 2 — Model C Extended Disclosure. Under PD 57AD, narrow disclosure of cryptographic hash manifests (SHA-256) and deduplication logs, produced within a confidentiality ring. External-eyes-only per *IPCom v HTC* [2013] EWHC 2880 (Ch) at [360]–[377]; three-tier per *Mitsubishi v OnePlus* [2020] EWCA Civ 1562 at [18]–[23]; self-certified for SME defendants per the March 2026 Report.

Stage 3 — Adverse Inference. Where the developer fails to preserve or produce records without credible non-culpable explanation, the court may draw an adverse inference on the factual issue of ingestion: *Wisniewski* [1998] EWCA Civ 596; [1998] PIQR P324 (witnesses), extended to documents in *Wetton v Ahmed* [2011] EWCA Civ 610 [14], applied to electronic records in *Earles v Barclays* [2009] EWHC 2500 (Mercantile). Distinguishes deliberate spoliation from routine data-minimisation.

"PRPP is a procedural mechanism, not a substantive copyright doctrine. It does not change what counts as infringement. It changes how the factual element of ingestion can be established."

§ III · THE SOFTWARE

The demonstrator implements the framework against a curated UK/EU knowledge base. Three engines, each defensible:

PRPP Engine — computes prima facie trigger strength across all three routes; assesses Model C feasibility under proportionality (PD 57AD para 6.4 + CPR r.1.1); applies the *Wisniewski* test with auto tier-downgrade for SME defendants.

TDM Engine — reviews commercial contracts for liability under CDPA 1988 s.29A, DSM Directive Arts 3-4, and EU AI Act Art.53. Risk scoring is mitigation-aware: TDM exclusions, provenance warranties, and audit rights *reduce* risk rather than being ignored.

Playbook Engine (v1.1) — real TF-IDF vector-space cosine similarity against the centroid of a firm's gold-standard corpus. Returns similarity score, closest-precedent identification, missing protective terms, and confidence band. Ships with a verification harness that proves correct ranking on synthetic IP/AI clauses.

§ IV · KNOWLEDGE BASE

CDPA 1988 (ss.16, 17, 28A, 29A, 90, 96), UK GDPR & DPA 2018, UCTA 1977, Trade Marks Act 1994, Arbitration Act 1996, EU AI Act Reg.2024/1689, DSM Directive 2019/790, the March 2026 UK Government Report, and PD 57AD.

Leading cases include *Getty v Stability AI* [2025] EWHC 2863 (Ch); *Designers Guild v Russell Williams*; *Wisniewski*; *Wetton v Ahmed*; *Earles v Barclays*; *IPCom v HTC*; *Mitsubishi v OnePlus*; *Infederation v Google*; *Kneschke v LAION* (OLG Hamburg, 10 Dec 2025); *Lidl v Tesco*; *Sky v SkyKick*.

§ V · LIMITATIONS

PRPP is a proposal; no court has yet ordered Model C disclosure for AI training corpora in this form. The framework synthesises existing CPR / PD 57AD tools; its judicial reception is untested. The manuscript is under journal review. No solicitor-client relationship is created by use of this tool.